

22STCV06463 22STCV06463

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-07-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C415%2C07%2F01%2F2026

Source SHA-256: 70fb12372be3cd992bdc7f40397f96b225eac185f70a0a0f4f5b7dfcb0f7d143

Case Number: 22STCV06463 Hearing Date: July 1, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

July 1, 2026

CASE NUMBER

22STCV06463

MOTION

Motion to Serve by Publication

MOVING PARTY

Plaintiff Salaheddine El Moqaddem

OPPOSING PARTY

None

MOTION

Plaintiff Salaheddine El Moqaddem ("Plaintiff")

moves for an order to permit service of summons on Defendant Albert Gregory Pinto ("Defendant") by publication.

ANALYSIS

Code of Civil

Procedure section 415.50 permits service by publication of summons in a newspaper of general circulation. A

plaintiff must obtain a court order prior to serving a defendant by way of publication.

Strict compliance with the statutory requirements is required. (*County of Riverside v. Sup. Ct.* (1997) 54 Cal.App.4th 443, 450.)

To obtain an order

for publication, the plaintiff must show reasonable diligence in serving the defendant by other manners. (Code Civ.

Proc., § 415.50, subd. (a).) The

plaintiff must establish reasonable diligence through the testimony of an individual with personal knowledge of the efforts to serve the defendant. (*Olvera v. Olvera* (1991) 232 Cal.App.3d 32, 42.) Likewise, the

plaintiff must establish a cause of action exists against the defendant through the testimony of an individual with personal knowledge of the underlying facts. (Code Civ. Proc., § 415.50, subd.

(a)(1); *Harris v. Cavasso* (1977) 68 Cal.App.3d 723, 726.)

It is essential Plaintiff

exhaust all possible means of serving Defendant because it is well known service by publication is the least effective means of a party receiving notice. (See *Watts v. Crawford*

(1995) 10 Cal.4th 743, 749, fn. 5 (*Watts*) ["If a defendant's address is ascertainable, a method of service superior to publication must be employed, because constitutional principles of due process of law, as well as the authorizing statute, require that service by publication be utilized only as a last resort"].) Notably, in this regard Plaintiff fails to advance evidence he has attempted to serve Defendant in Washington, D.C., which Plaintiff acknowledges is where Defendant currently practices law. In addition, Plaintiff

has not established through the submission of any declaration by any process server, persons who Plaintiff asserts attempted service, of their attempts to personally serve Defendant, whether in Santa Monica, California, Las Vegas, Nevada, Brownwood, Texas, or elsewhere. Nor

has Plaintiff presented evidence of searches undertaken to locate Defendant through, for example, relatives or known telephone numbers, or that he, or others on his behalf, reached out to any Post Office to determine whether Defendant submitted change of address forms. (See, e.g., Watts, supra, 10 Cal.4th at p. 749, fn. 5.) Moreover, Plaintiff has presented no evidence, based on personal knowledge, he has causes of action against Defendant.

Accordingly, the Court concludes Plaintiff has not exercised reasonable diligence in attempting to serve Defendant by ordinary means, and the Court hereby denies the motion.